

Subsequently, Defendant filed a motion to compel the further deposition of plaintiff alleging that plaintiff's counsel prevented defense counsel from inquiring as to Defendant's English language education, where he was born and how long he has been in the United States, his use of English in daily life, his use of English with third parties and other facts relevant to his ability to understand English. While a transcript from the deposition was requested by the court to verify the information, the described questions follow the court's directions and are consistent with the discovery the court authorized.

At the case management conference on July 30, 2026, the court exercised its discretion to conduct an evidentiary hearing on the limited issue of Plaintiff's ability to understand English, finding that the discovery conflict on this limited issue created unnecessary work and expense for the parties when the court as fact-finder could make the determination. The matter is set for a 1 hour evidentiary hearing.

The court additionally confirmed the hearing on the motion to compel arbitration to take place on August 6, 2026 at 9:00.

ADRIANNA PRICE-HICKS v. SOLANO COUNTY ET AL.
Case No. CU26-04956

Petition to Approve Minor's Compromise (Solano County)

TENTATIVE RULING:

This matter is continued on the court's own motion to permit Plaintiff to supplement the petition. Hearing is **continued to October 7, 2026, at 9:00 a.m.**

No treatment medical records are attached to the petition. See 10.b. A billing summary from Medi-Cal reflects 3 treatment contacts by Northbay Healthcare on 2/20/24 for the initial encounter and 2/26/24 for an additional encounter. Inexplicably a third entry described as an initial encounter is dated 6/5/24. The petition alleges treatment is not complete and the minor suffers from PTSD and anxiety but she does not appear to be seeking or receiving treatment for emotional distress?

It also seems that Solano County (including the Solano Sheriff's Department) is the only resolving defendant but that the California Highway Patrol is also named and has not been dismissed. Please explain. Is a motion for good faith settlement necessary? If CHP is dismissed, the court will understand a motion for good faith settlement is not required.

A supplemental pleading shall be filed no later than September 24, 2026. Please review the tentative hearing system on October 6, 2026.

Deon Issac, J.A., T.A. and N.C. et al. v. Northbay Healthcare Corporation
Case No. FCS059353

Plaintiff's Motion for Final Approval of Class Action Settlement

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING

Parties to appear.

Motion to Withdraw as Counsel for DEON ISAAC

The unopposed motions of class counsel law firms to be relieved as counsel for DEON ISAAC is GRANTED.

Additionally, the court finds that DEON ISAAC is no longer a proper representative for the class and intends to dismiss him from his representative status. Mr. Isaac's individual claims will be addressed in the same manner as any other class member.

Motion for Final Approval of Class Action Settlement

Plaintiffs J.A., T.A. and N.C. move for final approval of the settlement reached with Defendant NORTHBAY HEALTHCARE. The settlement concerns a class action involving alleged use of tracking tools on Defendant's websites or patient portals between November 29, 2020 and May 14, 2024 which may have resulted in disclosure of personal information or health information to a third party without authorization or consent.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.)

This court preliminarily approved the settlement on October 1, 2025.

The proposed class meets the requirements for numerosity, is ascertainable and has claims or defenses in common. The settlement class is comprised of approximately 36,038 individuals. 603 members did not have valid mailing or email addresses. Settlement administrator Simpluris estimates successful delivery by email or mail of

notice to identified class members of 97.44% of the class. Only 1160 or 3.225% of the class returned claims. No requests for exclusion or objection were received.

The settlement which provides one-year subscription to CyEx Privacy Shield Pro and cash payments of \$15.00 to each class member who submits a claim form is fair, reasonable, and not the product of fraud, overreach, or collusion where the settlement was reached after arm's-length mediation. Additionally, Defendant implemented a new data privacy and compliance platform which is designed to intercept and filter information obtained through tracking tools before data is sent to third parties. The retail value of the settlement is \$10,062,000 for the CyEx Privacy Shield Pro at a rate of \$24.99 per user and cash payment at a value of \$503,100. However, the actual value of the CyEx Privacy Shield Pro purchased at volume rate is \$15 and based on actual number of claims, cash payments totaled \$17,400.

The parties used experienced mediator Bruce A. Friedman, Esq.

Plaintiffs J.A., T.A. and N.C. appear to be appropriate representatives for the class. The court finds an enhancement award to the named plaintiffs of \$1,250 is reasonable.

In the motion for preliminary approval, the anticipated costs of the settlement administrator were \$22,000. In the final moving papers, the costs ballooned to \$43,168. Some of these additional expenses were attributed to renoticing which was caused by the failure of counsel to timely withdraw from representation of DEON ISAAC or address Mr. Isaac's status as a named plaintiff when his awol status was known at the time the motion for preliminary approval was filed. Plaintiff's counsel should be prepared to address how the class or defense should be required to bear an expense caused by Plaintiffs' counsel's administration of this case or whether this should be borne by Plaintiffs' counsel.

The parties agreed that the defense would pay no more than \$345,000 in attorneys fees and Defendant would not oppose a claim for this sum or less. Based upon the representations by counsel, the sum is less than 40% of attorneys' fees which they estimate would have been charged under a traditional lodestar analysis based upon 980 hours. \$345,000 divided by 980 hours results in a \$352/hour rate which is reasonable for experienced class counsel. The court would not find the rates claimed of \$839. \$925 or \$1141 per hour to be reasonable in this case, especially given issues that arose. Additionally, the court would have reduced hours based upon the number of attorneys who touched this file being excessive which creates unnecessary duplication of effort. But, given the actual sums agreed upon and the effective rate reduction, the award of \$345,000 at the rate of \$352/hour is reasonable and fair.

The settlement agreement does not address litigation expenses. In the preliminary motion, class counsel requested approval of "reasonable litigation expenses incurred" and anticipated advancing up to \$33,932.05 in costs. In its final motion, the sum requested is \$26,940.80 in costs. Defendant does not oppose this request. Insufficient support is provided to justify certain expenses and some expenses are claimed

inconsistently by the multiple law firms involved. The court disallows \$1054.90 for Almeida pro hac vice fees. Charges for research of \$613.01 are disallowed. Insufficient support is provided to justify claims for transportation and parking of \$73.60 and \$3,465.46 for "travel expenses." The court did not require personal appearances and most appearances were by Zoom and while attorney Almeida personally appeared, attorney Wise or the Peiffer Wolf firm did not appear in person. In the court's experience, most mediations are also conducted via Zoom. In terms of costs, these items are also not typical costs a court would traditionally award. (See CRC rule 3.1700(a).) With these exceptions, costs are approved in the sum of \$21,733.83.

The motion for final approval does not address distribution of any undistributed funds. During the hearing for preliminary approval, the court questioned why undistributed funds could not be used to extend any protections for the known class members by purchasing additional coverage from CyEx Privacy Shield Pro. It appears that plaintiffs might have attempted to file something with the court to address this issue on November 5, 2025, but the filing was rejected by the clerk as an exhibit by itself cannot be filed unless attached to a pleading. Parties to address.

Assuming final approval, hearing to confirm final performance and distribution of funds, including final disposition of any unclaimed funds, is set for **March 11, 2027, at 8:30 a.m.** A declaration confirming compliance, including negotiation and final disposition of the unclaimed proceeds, shall be filed 15 days prior to the hearing.

Plaintiff shall prepare the order after hearing and judgment incorporating Code of Civil Procedure section 664.6 which shall be approved as to form by defense counsel pursuant to Cal. Rules of Court, rule 3.1312(e) prior to submission to the court.

GEORGE LACSON VS. RAY BEYOND CORP, ET AL.
Case No. CU24-04909

Trial Management Conference

TENTATIVE RULING:

The court is in receipt of Plaintiff's 427 page trial management conference statement and Defendants' 1820 page trial management conference statement.

On the court's own motion, the trial management conference is continued to August 14, 2026 at 9:00 a.m. Remote appearances are DENIED. Bring original deposition transcripts to be lodged with the clerk.

Parties are to meet and confer regarding their motions in limine. In particular, where each party requests the court to exclude a particular opinion from an expert on a particular topic, please confirm whether that request for exclusion is agreed or opposed. (For example, a request to exclude opinion by Dr. Flavin as to accident reconstruction or biomechanical engineering seems unnecessary when she is not